REGISTERED OFFICE
Leadway House
NN 28/29, Constitution Road, Kaduna.
Tel: 02-012800700

CORPORATE OFFICE
Leadway House
121/123, Funso Williams Avenue,
Iponri,
G.P.O. BOX 6437 MARINA, LAGOS
Tel: 02-012800700

E-mail: insure@leadway.com **Website:** www.leadway.com

HOUSEOWNERS AND HOUSEHOLDERS INSURANCE POLICY

WHEREAS the Insured, by a Proposal and Declaration which shall be the basis of this Contract and is deemed to be incorporated herein, has applied to the Company for the insurance hereinafter contained and has paid the premium as consideration for such insurance.

NOW THIS POLICY WITNESSETH that

In respect of events occurring during the Period of Insurance and subject to the terms, exceptions and conditions contained herein or endorsed hereon (hereinafter collectively referred to as the Terms of this policy).

POLICY DETAILS

THE POLICY HOLDER:	
POLICY NUMBER:	HH
BROKER/AGENT:	
BRANCH:	CORPORATE OFFICE
PRODUCT:	HOUSEHOLDERS
DATE OF ISSUE:	
COVER FROM:	
COVER TO:	
RENEWAL DATE:	
SUM INSURED:	NGN
PREMIUM:	NGN
CURRENCY:	NGN
POLICY TYPE:	NORMAL
POLICY FREQUENCY:	ANNUALLY

POLICY SUB-CLASSES

1. HOUSEHOLDERS RISK

SECTION 1. HOUSEHOLDERS RISK

ITEM NO:	RISK DESCRIPTION	RISK VALUE	LOCATION DESCRIPTION:
1			
2			
3			

SECTION I - LOSS OF OR DAMAGE TO THE BUILDINGS

The Company will, subject to the Limits of Liability, indemnify the Insured against loss of or damage to the Buildings caused by an Insured Peril.

The Company may at its option repair, reinstate or replace any property lost or damaged or may pay in cash the amount of the loss or damage.

SECTION II - LOSS OF OR DAMAGE TO THE CONTENTS

The Company will, subject to the Limits of Liability, indemnify the Insured against:

Loss of or damage to the Contents, whilst contained in the Buildings, caused by an Insured Peril

The Company may at its option repair, reinstate or replace any property lost or damaged or may pay in cash the amount of the loss or damage.

SECTION III - ADDITIONAL EXPENSE OF ALTERNATIVE ACCOMMODATION AND LOSS OF RENT

In the event of the Buildings being rendered uninhabitable by an Insured Peril, the Company will, subject to the Limits of Liability, indemnify the insured against:

(i) reasonable additional expense for alternative accommodation
(ii) loss of rent payable to the insured actually incurred by the insured during the period necessary for the reinstatement of the Buildings.

SECTION IV - LIABILITY TO THE PUBLIC

The Company will, subject to the Limits of Liability, indemnify the insured against all sums for which the insured may be legally liable:

(A) as owner of the Buildings

(B) as a private householder occupying the Buildings

in respect of:

(1) accidental bodily injury (whether fatal or not)
(2) accidental damage to property occurring in or about the Buildings during the Period of Insurance.

Provided that the Company shall not be liable in respect of:

(a) bodily injury to any person being a member of the insured's family or household or at the time of sustaining such injury engaged in and upon the service of the insured.

(b) damage to property belonging to or in the charge of or under the control of the insured or a member of the insured's family or household or of a person in the service of the insured.

(c) bodily injury or damage arising out of or incidental to:

(i) the insured's profession or business
(ii) the use of lifts, elevators or vehicles

(d)any liability which attaches by virtue of an agreement but which would not have attached in the absence of such agreement.

In addition, in respect of a claim to which the indemnity expressed in this section applies, the Company will pay:

(a) all costs and expenses recovered by any claimant from the insured, and (b)
all costs and expenses incurred with the written consent of the Company.

In the event of the death of the insured the Company will, in respect of the liability incurred by the insured, indemnify the insured's personal representatives in the terms of and subject to the limitations of this section provided that such personal representatives shall as though they were the insured observe, fulfill and be subject to the Terms of this policy so far as they can apply.

For the purpose of this section the expression "the insured" shall be deemed to include the husband or wife of the insured.

SECTION V - COMPENSATION FOR DEATH OF THE INSURED

If the insured whilst at the Buildings shall suffer bodily injury caused by violent, external and visible means and sustained as a result of fire or caused by thieves and if such bodily injury shall within three calendar months result in the death of the insured the Company will, subject to the limits of liability, pay compensation to the insured's personal representatives.

LIMITS OF LIABILITY

Limits of the Company's Liability

Under **SECTION I** In respect of loss or damage occurring during any one Period of Insurance the Sum Insured on each item of the Buildings.

Under **SECTION II** (a) In respect of any one article, Jewelry exclusive, 3% per cent of the Total Sum Insured on Contents unless such article is declared and insured as a separate item of the contents.

(b) (i) In respect of Platinum, Gold and Silver Articles, Jewelry, Furs and Works of art is limited to 10% of the Contents Sum Insured per location or N500,000.00 whichever is lower.

(ii) No single item of jewelry insured under this policy shall be deemed to be of greater value than 2.5% of the contents sum insured per location unless specifically insured within the policy limit above stated.

(c) In respect of loss or damage occurring during any one Period of Insurance the Sum Insured on each Item of the Contents.

Under **SECTION III** 10% of the Total Sum Insured on Buildings plus 10% of the Total Sum Insured on Contents

Under **SECTION IV** N=250,000.00 in respect of any one claim or series of claims arising out of one event

Under **SECTION V** N=25,000.00 or one-half of the Total Sum whichever is the less.

INSURED PERILS

1. **FIRE, LIGHTNING, THUNDERBOLT OR SUBTERRANEAN FIRE**.

2. **EXPLOSION**.

3. **THEFT** but only if accompanied by actual forcible and violent breaking into or out of a building or any attempt thereat.

4. **RIOT AND STRIKE** .The policy covers damage directly caused by:

(a) The act of any person taking part together with others in any disturbance of the public peace (whether in connection with a strike or lock-out or not) not being an Excluded Peril.

(b) The action of any lawfully constituted authority in suppressing or attempting to suppress any such disturbance or in minimising the consequence of any such disturbance.

(c) The wilful act of any striker or locked-out worker done in furtherance of a strike or in resistance to a lock – out;

For any loss to be recovered under this section, the insured shall prove that such damage or loss was not occasioned through or in consequence, directly or indirectly of:-

i acts of terrorism committed by any person or persons acting on behalf of or in connection with any organization.

Ii civil commotion assuming the proportions of or amounting to a particular rising

iii the malicious act of any person (whether or not such act is committed in the course of disturbance of the public peace) not being the wilful act of any rioter striker or locked-out worker in furtherance of a riot or strike or in resistance to a lock-out;

iv communal and/or religious disturbances;

v any act which is calculated or directed to bring about loss or damage in order to further any political aim, objective or cause or to bring about any social or economic change or in protest against any state or government, or any political or local authority or for the purpose of imposing fear in the public or any section thereof.

Vi The act of any lawfully established authority in controlling, suppressing or in any other way dealing with any occurrence referred to in item v above.

For the purpose of this exclusion:

a) communal disturbance shall mean any act of public disorder directed at, or in retaliation against any ethnic or tribal group committed by any organization. For the purpose of this definition, communal disturbances shall include intra-ethnic conflicts.

b) religious disturbance shall mean any act committed by any religious group or groups in pursuance of certain belief or faith resulting in any loss, damage to or destruction of the property insured.

c) any loss or damage in respect of items v and vi occasioned directly by a labour disturbance, lockout or strike shall not be excluded.

5. **MALICIOUS DAMAGE** to the property insured directly caused by the deliberate act of any person whether or not such act is committed in the cause of a disturbance of the public peace) other than damage arising out of theft or any attempt threat.

The cover provided under this peril is subject to cover under riot and strike and subject to the application of the exclusions under that Peril other than 1(iii)

6 **AIRCRAFT OR OTHER AERIAL DEVICE** or any article dropped therein.

7. **BURSTING OR OVERFLOWING OF A WATER TANK, APPARATUS ORPIPE EXCLUDING;**

(a) **Under SECTION I** the first **N=5,000.00** in respect of each and every loss.

(b) **Under SECTION I** loss or damage occurring while Buildings are left unfurnished.

(c) **Under SECTION II** damage caused to such water tank, apparatus or pipe.

8. **IMPACT EXTENSION**
Impact to the building or the boundary walls, fences, and gates by any road vehicles, horses or cattle including that belonging to or under the control of insured or any person in the insured's employment excluding the first **N=5,000 .00** of each and every claims.

9. **EARTHQUAKE OR VOLCANIC ERUPTION,** including Flood or Overflow of the Sea occasioned thereby, EXCLUDING under SECTION I the first **N=50,000** of each and every loss.

10. **HURRICANE, CYCLONE, TORNADO, OR WINDSTORM**, including Flood or Overflow of the Sea.

FLOOD: for the purpose of this policy shall mean the overflowing or deviation from the normal channels of either natural or artificial water causes bursting or overflowing of public water mains or any other slow or accumulation of water originating from outside the building insured or contained in the property insured but excluding:-

(a) destruction or damage caused by storm or tempest

(b) destruction or damage caused solely by bursting or overflowing of water tanks apparatus pipes or guttering and down pipes in connection therewith being part of the insured premises.

(c) the first ₦5,000.00 of each and every claims.

11. **SUBSIDENCE OR LANDSLIP**, and occasioned thereby

GENERAL EXCEPTIONS

The Company shall not be liable in respect of:

1. any accident, loss, damage, expense, liability or bodily injury occasioned by or through or in consequence directly or indirectly of:

(a) war, invasion, act of foreign enemy, hostilities or warlike operations (whether war be declared or not), civil war.
(b) mutiny, civil commotion assuming the proportions of or amounting to a popular rising, military rising, insurrection, rebellion, revolution, military or usurped power.
(c) an Excluded Peril.

In any action, suit or other proceeding where the Company alleges that by reason of the provisions of this General Exception any accident, loss, damage, expense, liability or bodily injury is not covered by this insurance, the burden of proving that such accident, loss, damage, expense, liability or bodily injury is covered shall be upon the insured.

2. except as provided for under Insured Peril (3), any accident, loss, damage, expense, liability or bodily injury occasioned by or through or in consequence directly of confiscation, commandeering, requisition or destruction of or damage to the Buildings or the Contents by order of the Government de jure or de facto or any public, municipal or local authority of the country or area in which the Buildings are situated.
3. any accident, loss, damage, expense, liability or bodily injury directly or indirectly caused by or arising from or in consequence of or contributed to by:

   (a) nuclear weapons material
   (b) ionising radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel and, solely for the

   purpose of this General Exception 3 (b), combustion shall include any self-sustaining process of nuclear fission.

4. consequential loss or damage of any kind except as provided in Section III

5 As regards insured perils (2), (3) and (4) only: **ANY ACT OF ANY PERSON** acting on behalf of or in connection with any organisation with activities directed towards the over-throw by force of the Government de jure or de facto.

6 **HURRICANE, CYCLONE, TORNADO OR WINDSTORM** as regards any building in the course of construction, reconstruction, or repair, awnings and blinds.

7. loss or damage arising during the adjustment or repair of any mechanically or electrically driven machine or apparatus.

8. damage to the lens of insured camera is not covered unless the body of the camera is damaged at the same time.

9 loss of or damage to any electrical machine, apparatus, or any portion of the electrical installation arising from or occasioned by over-running, excessive pressure, short-circuiting, arcing, self-heating or leakage of electricity from whatsoever cause (lightening included) arising.

PROVIDED that this exemption shall only apply to the particular electrical machine, apparatus or portions of electrical installation so affected, and not to other machines, apparatus or electrical installation destroyed or damaged by fire set up by such particular machine, apparatus or other electrical installation

CONDITIONS

1. This Policy and the Schedule shall be read together and any word or expression to which specific meaning has been attached in any part of the Policy or the Schedule shall bear such meaning wherever it may appear.

2. The Insured shall:

   (a) use all reasonable diligence and care to keep the Buildings in a proper state of repair and if any defect therein be discovered shall cause such defect to be made good as soon as possible and shall in the meantime cause such additional precautions to be taken for the prevention of injury, loss or damage as the circumstances may require and the Company shall not be liable for any injury, loss or damage caused by a defect which the insured has failed to remedy after having received notice of such defect either from the Company or any person or public body., and

   (b) exercise all reasonable precautions for the maintenance and safety of the property insured under section II.

3 In the event of any happening which may give rise to a claim under this policy, the insured (or in the case of a claim under Section V the insured's personal representatives):

   (a) shall give immediate notice in writing to the Company

   (b) if there has been theft or any attempt thereat, shall give immediate notice to the police

   (c) shall at his (or their) own expense supply the Company with full particulars in writing as soon as possible and in the case of a claim under Section I or II not later than thirty days after the occurrence or the loss or damage

   (d) if a claim may arise under Section IV, shall send to the Company any writ, summons or other legal process issued or commenced against the insured and shall give all necessary information and assistance to enable the Company to settle or resist any claim or to institute proceedings

(e) shall not incur any expense in making good any loss or damage without the written consent of the Company and shall not negotiate, pay, settle, admit or repudiate any claim without the like consent.

(a) shall give the Company all such information as the Company may reasonably require.

4. The Company shall be entitled:
   (a) on the happening of any loss or damage for which indemnity is provided under Section I or II to enter any building where the loss or damage has happened and to take and keep possession of the property insured and to deal with the salvage in a reasonable manner and this policy, or any copy thereof certified by the Company, shall be proof of leave and license for such purpose but no property may be abandoned to the Company.

   (b) to undertake in the name and on behalf of the insured the absolute conduct, control and settlement of any proceedings and to take proceedings at its own expense and for its own benefit, but in the name of the insured, to recover compensation or secure indemnity from any third party in respect of anything covered by this policy.

   (c) to pay at any time to the insured the Limit of Liability under Section IV or any lesser amount for which any claim or claims can be settled and upon such payment the Company shall relinquish conduct and control of and be under no further liability under that section in connection with such claim or claims except for costs and expenses recoverable from the insured or incurred with the written consent of the Company in respect of the conduct of such claim or claims before the date of such payment.

5. If at the time of any happening giving rise to any loss, damage, expense or liability for which indemnity is provided under this policy there shall be any other insurance against such loss, damage, expense or liability or any part thereof the Company shall not be liable for more than its ratable proportion thereof.

6. If either the Buildings or the Contents shall at the time of any loss or damage for which indemnity is provided under section I or II be of greater value than the Sum Insured thereon then the insured shall be considered as being his own Insurer for the difference and shall bear a ratable proportion of the amount of such loss or damage accordingly and every item of the Buildings and of the Contents shall be separately subject to this condition.

7. If any claim under this policy shall be in any respect fraudulent or if any fraudulent means or devices are used by the insured or anyone acting on his behalf to obtain any benefit under this policy, all benefit hereunder shall be forfeited.

8. Unless otherwise expressly stated nothing contained herein shall give any rights against the Company to any person other than the insured. Further the Company shall not be bound by any passing of the interest of the insured otherwise than by death or operation of law unless and until the Company shall by endorsement declare the insurance to be continued. The extension of the Company's liability in respect of the property of any person other than the insured shall give no right of claim hereunder to such person, the intention being that the insured shall in all cases claim for and on behalf of such person and the receipt of the insured shall in any case absolutely discharge the Company's liability hereunder.

9. This policy may be cancelled at any time at the request of the insured in writing to the Company and the premium shall be adjusted on the basis of the Company receiving or retaining the customary short term premium or minimum premium. The policy may also be cancelled by the Company by seven days notice given in writing to the insured at his last known address and the premium shall be adjusted on the basis of the Company receiving or retaining pro rata premium.

10. All differences arising out of this policy shall be referred to the arbitration of some person to be appointed by both parties or, if they cannot agree upon a single Arbitrator, to the decision of two Arbitrators, one to be appointed in writing by each party; and in case of disagreement between the Arbitrators, to the decision of an Umpire who shall have been appointed in writing by the Arbitrators before entering on the reference, and an award shall be a condition precedent to any liability of the company or any right of action against the company. If the company shall disclaim liability to the Insured for any claim hereunder and such claim shall not within twelve calendar months from the date of such disclaimer have been referred to arbitration under the provisions herein contained then the claim shall for all purposes be deemed to have been abandoned and shall not thereafter be recoverable hereunder.

HOUSEHOLDERS RISK CLAUSES

1. BREACH OF CONDITIONS CLAUSE

The conditions and warranties of the policy shall apply to the items concerned individually and not collectively as if each were insured by a separate policy. Thus, a breach of any condition or warranty shall void the section only in respect of the items to which the breach applies and not in respect of the remaining items.

2. ALL RISKS EXTENSION

It is hereby declared and agreed that the cover granted on item number 3 of the within policy is on all risk basis.

Provided always that the company shall not be responsible in respect of:

1. Damage caused by any process of cleaning, ironing, restoring or repairing.
2. Damage resulting from wear or tear, deterioration, moth, insect, vermin, or any gradually operatingcause.
3. Breakage of glass, china, crockery or articles or articles of a brittle nature (other than jewellery), damagecaused by over winding, denting or internal damage of watches or clocks (other than damage caused by fire or thieves).
4. Breakage or mechanical derangement of cameras, typewriters, gramophones, wireless sets or electricalapparatus of any kind (other than damage due to fire or theft).
5. Loss of or damage to guns, revolvers or rifles caused by rusting, bursting or derangement (other thandamage due to fire or theft).
6. Any of the articles insured whilst in transit unaccompanied by the insured or members of his familynormally residing with him.
7. The first N250,000 or 10% of any claim whichever is greater.
8. Loss or damage whilst the insured articles are left in an unoccupied building for a longer period thanseven (7) days unless suitable arrangements are made for the safety of the said articles and consent of the company is obtained to such arrangement.
9. Loss of or damage to Cash, Treasury Notes, Bank Notes, Deeds, Bonds, Bills of Exchange, PromissoryNotes, Cheques, Securities for money, Stamps, Documents of any kind.
10. Manuscripts, Medals, Plants or coins.
11. Loss or damage occurring outside the territorial limit of the Federal republic of Nigeria.

3. DESIGNATION OF PROPERTY CLAUSE

For the purpose of determining where necessary the item under which any property is insured, the Insurers agree to accept the designation under which such property has been entered in the Insured's books.

4. COOKING WARRANTY

It is further warranted during the currency of this policy that cooking is allowed only in that portion of the premises set apart for such purpose.

5. DOCUMENTARY EVIDENCE WARRANTY

It is warranted during the currency of this policy that in the event of claim for loss arising under item(s) described in the policy schedule, the insured shall produce documentary evidence in form of purchase receipt showing the actual amount of value of the items insured prior to the happening of the loss.

6. ELECTRICAL CLAUSE

The Company is expressly declared to be free from liability for loss of or damage to any electrical machine, apparatus, or any portion of the electrical installation arising from or occasioned by over-running, excessive

pressure, short-circuiting, arcing, self-heating or leakage of electricity from whatsoever cause (lightning included) arising.

PROVIDED that this exemption shall only apply to the particular electrical machine, apparatus, or portion of electrical installation so affected, and not to other machines, apparatus or electrical installation destroyed or damaged by fire set up by such particular machine, apparatus or other electrical installation.

7. WORKMEN CLAUSE

Joiners and other tradesmen may be employed effecting repairs and minor structural alternations in or on any of the within described buildings without prejudice to the insurance hereby. provided that all waste of a combustible nature so produced be removed daily from the buildings in which these workmen are engaged temporarily.

8. 30 DAYS CANCELLATION CLAUSE

It is hereby declared and agreed that this policy is subject to cancellation by either the Insured or the Insurers giving thirty (30) days notice in writing

9. EXCESS CLAUSE

It is hereby declared and agreed that the Company shall not be liable for the first N250,000.000 or 10% of each and every claim whichever is higher.

10. SINGLE ARTICLE LIMIT (HH POLICY)

No single item insured under items number 2 & 3 of this Policy shall be deemed to be of greater value than 2.50% of the sum insured unless such item is specifically insured. In view of this, the limit of liability under Section II as contained on Page 3 of this policy is deleted

11. LONG TERM AGREEMENT CLAUSE (5YEARS)

A discount of 7.5 per cent off the net premiums on this policy will be allowed in consideration of the Insured having signed an undertaking with effect from the undernoted date to offer annually for the undernoted term the insurance under this policy on the terms and conditions in force at the expiry of each period of Insurance and to pay the premium annually in advance it being understood that:-

(i) the Company shall be under no obligation to accept an offer made in accordance with the abovementioned undertaking.

(ii) the sum insured may be reduced or increased at any time to correspond with any reduction or increasein value.

(iii) in exercising its option as set forth in Condition 10 of the policy the Company will adjust the premiumsfor that current period of Insurance taking into consideration the amount of discount that may have been allowed to the Insured up to the date of cancellation and

(iv) the above mentioned undertaking applies to any Policy or policies which may be issued by theCompany in substitution for this policy and the same discount of 7.5 per cent shall be allowed for the net premium on the corresponding items of any substituted policy or policies issued by the Company aforesaid.

Effective date of undertaking: 19/06/2025

Term of Agreement: 5 years

12. PAIRS AND SETS CLAUSE

It is hereby understood and agreed that where any item insured under this policy consists of articles in pair or set, the liability shall not exceed the value of any particular parts that may be lost or damaged without reference to any special value which such article or articles may have as part of such pair or set nor more

than a proportionate part of the insured value of the pair or set, except where said lost or damaged article forms an integral part of the pair or set such that its functionality is voided

13. FENCE AND BOUNDARY WALLS CLAUSE

Notwithstanding anything contained under Item G (Storm, Tempest & Flood) subset (b) of the within policy, it is here by understood and agreed that the cover granted under the within mentioned policy shall include gates, fence and boundary walls provided that:

1) The sum covered by this extension shall not exceed 10% of the sum insured on buildings per locationexcept where the amount for the boundary walls/fence is separately stated.
2) The boundary walls/fence must be always maintained in good condition by undertaking appropriaterepairs as may be required.
3) In the event of a claim on the boundary wall/fence /gates, suitable deduction will be made to take care ofthe improvement depending on the type of new boundary wall/fence/gate that replaces the damaged one, based on the recommendations of the loss adjusters.
4) The loss will not be recoverable if it is attributable to wear and tear or poor standard of construction."

14. STANDARD CONSTRUCTION CLAUSE

It is hereby declared and agreed that building of Standard construction shall be deemed to mean building constructed of concrete/cement block / burnt bricks with or without iron structure roofed with corrugated/ flat iron sheet/asbestos or decked with concrete. Subject otherwise to the terms of the terms of the policy.

15. INSURED'S HOUSEHOLD EMPLOYEE WARRANTY

Warranted that losses or damage to the properties insured under this policy through or attributable to members of the insured's household, domestic servants or those legally residing with him or them are excluded by this policy.